

The M.P. Municipalities (Composition of Offences) Rules, 1963

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State of Madhya Pradesh - Act

The M.P. Municipalities (Composition of Offences) Rules, 1963

MADHYA PRADESH

India

The M.P. Municipalities (Composition of Offences) Rules, 1963

Rule THE-M-P-MUNICIPALITIES-COMPOSITION-OF-OFFENCES-RULES-1963 of 1963

Published on 25 April 1963

Commenced on 25 April 1963

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The M.P. Municipalities (Composition of Offences) Rules, 1963

Published vide Notification No. 62-U-18, dated 25-4-1963

1.

Short title.

- These rules may be called the Madhya Pradesh Municipalities (Composition of Offences) Rules, 1963.

2.

Definition.

- In these rules "Act" means the Madhya Pradesh Municipalities Act, 1961 (

No. 37 of 1961

).

3.

A person empowered to accept composition, for alleged offences shall, in regard to such composition, observe the following procedure :-

(i)

Before starting composition proceedings he shall carefully explain to the accused the offence with which he is charged and that he is at liberty, if so wishes, to be tried for it.

(ii)

He shall satisfy himself by personal enquiry that there is reason to believe that the alleged offence has been committed. In this enquiry he shall always hear the statement of the accused person.

(iii)

The sum to be accepted in composition for any alleged offence may be any amount up to the maximum fine imposable for such offence by or under the Act.

(iv)

He shall immediately enter under his signatures, particulars of every case in which he takes action in a register in the form appended to these rules and if the composition is accepted forward it to the Chief Municipal Officer who shall receive the amount and credit to the Municipal Fund and make the necessary entries in column (6) of the register. The receipt for ever such recovery shall be signed by the Chief Municipal Officer.

(v)

No composition shall be effected to an offence arising from non-compliance of any written notice issued by or on behalf of the Council unless and until such notice has been complied with so far as the compliance is possible.

4.

The register prescribed by clause (iv) of Rule 3 shall be placed before the Council at its next meeting.

Form of Register

[See clause (iv) of Rule 3]

Serial No.

Name and address of accused

Offence charged with details of allegations

Summary of accused's statement

(1)

(2)

(3)

(4)

Order passed

If compounded, sum paid and date credited

If not compounded, action taken

Remarks

Signature of person holding proceeds.

(5)

(6)

(7)

(8)

(9)

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